

25CV04698 Parma Properties, LLC v. Vernice A. Hardeman Haynes White

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-13

Motion: Motion of Plaintiff Parma Properties, LLC. for Evidentiary and/or Terminating Sanctions Against Defendant Vernice A. Hardeman Haynes White

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv04698>

Source SHA-256: d2ff972d0b2368f4b85ede740e2106ef1065543fa913206490afed73ef81b9e6

Tentative Ruling: Parma Properties, LLC v. Vernice A. Hardeman Haynes White

Case Number

25CV04698

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/13/2026 - 10:00

Nature of Proceedings

Motion of Plaintiff Parma Properties, LLC. for Evidentiary and/or Terminating Sanctions Against Defendant Vernice A. Hardeman Haynes White

Tentative Ruling

For Plaintiff Parma Properties, LLC: Paul R. Burns, Solange D. Sanhueza

For Defendant Vernice A. Hardeman Haynes White: Self-Represented

RULING

For the reasons set forth herein:

Evidentiary sanctions are imposed against Defendant Vernice A. Hardeman Haynes White and in favor of Plaintiff Parma Properties, LLC. Defendant is precluded from testifying, or introducing any evidence in support of her contention that she possesses a life estate in the property located at 1219 Liberty Street, Santa Barbara.

The trial date of May 27, 2026, is confirmed.

Background

This action commenced on July 24, 2025, by the filing of the complaint by Plaintiff Parma Properties, LLC (Plaintiff) against Vernice A. Hardeman Haynes White (Defendant) for Quiet Title to Real Property and Declaratory Relief.

As alleged in the complaint:

Plaintiff is the owner in fee simple of a single-family residence located at 1219 Liberty Street, Santa Barbara (the “property”). (Compl., ¶ 1.)

Defendant presently resides as a squatter at the property. (Compl., ¶ 3.) Defendant claims that she was given an oral life estate in the subject property by Edward Kenneth White prior to White’s sale and transfer of the property to Plaintiff. (Compl., ¶ 4.) Based upon a title search of the property, there is not now and has never been any writing indicating the alleged life estate of Defendant in the property. (Compl., ¶ 5.) White contends that Defendant was his prior girlfriend who resided at the property for a period of time and then refused to move out after they broke up. (Compl., ¶ 6.)

On January 21, 2026, Defendant filed her answer to the complaint with a general denial, set forth a narrative of her position, admitted some allegations of the complaint, and denied some allegations of the complaint. By way of her answer, Defendant alleges that her husband, Eddie Lee White, purchased the property, married Defendant, and executed a Will on April 30, 2003, giving Defendant a life estate in the property after his death.

On April 3, 2026, Plaintiff had Defendant personally served with a notice of taking Defendant’s deposition on April 14, 2026. (Burns decl., ¶ 1 & Exh. A.)

On April 8, 2026, Plaintiff’s counsel contacted Defendant via telephone to confirm her appearance at 15 W Carrillo St., Santa Barbara as set forth in the deposition notice. (Burns decl., ¶ 2.) During the call, Defendant requested that the deposition be conducted at her current residence. (Burns decl., ¶ 3.) Plaintiff’s counsel agreed and reset the deposition location for Defendant’s address. (Burns decl., ¶ 4 & Exh. B.)

On April 9, 2026, Defendant called Plaintiff’s counsel and advised him that she decided to refuse to attend her deposition and that she would only appear at trial to “tell her side of the story.” (Burns decl., ¶ 5.) In response, Plaintiff’s counsel engaged in a lengthy meet and confer effort with Defendant and explained to her that if she did not attend a motion to compel would be filed against her. (Burns decl., ¶ 6.)

On April 14, the Court granted Plaintiff’s motion to compel Defendant’s deposition and ordered Defendant to appear for deposition on April 20, 2026, at 10 a.m. at 15 W Carrillo St., Santa Barbara. (Burns decl., ¶ 7 & April 14, 2026 Order After ex parte Hearing.)

On April 20, 2026, Defendant failed to appear at her deposition as ordered and, in a telephone call with Plaintiff’s counsel while the Court reporter and Plaintiff’s counsel were waiting for Defendant, Defendant stated her refusal to appear. (Burns decl., ¶ 8.)

Plaintiff now moves for evidentiary and/or terminating sanctions against Defendant for her refusal to sit for deposition.

Defendant was properly served with the motion. She has not filed opposition or any other response to the motion.

Trial of this matter is scheduled for May 27, 2026.

Analysis

Evidentiary and/or Terminating Sanctions

"California's pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side's evidence, with all doubts about discoverability resolved in favor of disclosure." (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1119.)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

As noted above, Defendant was properly served with a deposition notice and demand for production of documents at deposition. She refused to attend her deposition. Plaintiff obtained an order directing Defendant to appear for her deposition on April 20, 2026. Despite the Court order to do so, she again refused to sit for deposition.

"If that party or party-affiliated deponent then fails to obey an order compelling attendance, testimony, and production, the Court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010) against that party deponent or against the party with whom the deponent is affiliated. In lieu of, or in addition to, this sanction, the Court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against that deponent or against the party with whom that party deponent is affiliated, and in favor of any party who, in person or by attorney, attended in the expectation that the deponent's testimony would be taken pursuant to that order." (Code Civ. Proc., § 2025.450, subd. (h).)

"A Court has broad discretion in selecting the appropriate penalty" for a party's refusal to obey a discovery order. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.)

"[V]iolation of a discovery order is not a prerequisite to issue and evidentiary sanctions when the offending party has engaged in a pattern of willful discovery abuse that causes the unavailability of evidence. [Citation.]" (Karlsso v. Ford Motor Co. (2006) 140 Cal.App.4th 1202, 1215.)

Here, Defendant has violated the discovery order, and she has engaged in a pattern of willful discovery abuse that has caused the unavailability of evidence. The right to depose an adverse party is crucial to the ability to properly prepare for trial.

As noted above, trial in this matter is scheduled to begin May 27, 2026. Plaintiff has been severely prejudiced in its ability to prepare this matter for trial due to Defendant's continued refusal to sit for deposition and produce documents. Plaintiff has

provided extensions and has otherwise cooperatively worked with Defendant in scheduling the deposition. Defendant still, in no uncertain terms, has expressed her position that she will not sit for deposition. Even after the filing of the present motion, Defendant continues in her refusal and has not even filed an opposition to the motion. The Court finds Defendant's refusal willful and deliberate. It is apparent that monetary sanctions would not compel compliance.

The motion for evidentiary sanctions will be granted. Defendant will be precluded from introducing evidence at trial in support of her contention that she as a life estate in the property.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US